

		file this Motion until after the parties conducted a mediation in September 2025 and it became apparent that the parties would not stipulate to the amendments. Despite the delay, there is no indication that any party will be prejudiced by the amendments. Thus, the Motion is GRANTED. Defendant requests that the Court order the Amended Cross-Complaint and Amended Answer attached to the supporting declaration deemed filed as of the date of the order granting leave to amend. The request is denied. Defendant is ordered to file and serve the Amended Cross-Complaint and Amended Answer within 10 days of the date of this order. Moving party to give notice.
7.	30-2025-01491450 Stahl vs. Volkswagen Group of America, Inc	1. Motion to Compel Production Defendant, Volkswagen Group of America, Inc. (“VWGOA”), moves for an order compelling Plaintiff, Kathleen A. Stahl (“Plaintiff”), to provide verified responses to Inspection Demand, Set One, and for an order for monetary sanctions in the amount of \$1,837.50 against Plaintiff and her counsel of record. The motion is DENIED, as MOOT. If a party to whom requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to requests for production, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2031.300(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Here, on January 22, 2026, VWGOA served its Inspection Demand, Set One on Plaintiff. (Declaration of Lindsey M. Espinosa, ¶ 3, Ex. A.) The deadline to respond was extended to March 25, 2026. (<i>Id.</i>, ¶ 4.) VWGOA’s counsel sent a meet and confer email on April 14, 2026. (<i>Id.</i>, ¶ 6.) As of the time of the filing of the motion, Plaintiff failed to provide any substantive, verified responses to VWGOA’s Inspection Demand, Set One, and failed to respond to the meet and confer email. (<i>Id.</i>, ¶¶ 5, 6.) The opposition provides that on June 24, 2026, Plaintiff served “Further Responses” to Defendant’s Requests for Production, Set One, with verifications served on June 25, 2026. (Declaration of Paul Peterson, ¶ 3.) The reply does not dispute that responses to the subject Inspection Demand, Set One, have been served. Although VWGOA argues in reply that the responses are not Code-compliant and/or are deficient, there is insufficient information to evaluate the responses that were served. Based on the foregoing, VWGOA’s motion to compel responses to Inspection Demand, Set One, is DENIED as MOOT. As to <u>monetary sanctions</u>, Code of Civil Procedure section 2031.300 provides that “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.300(c).)

		Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, VWGOA requests monetary sanctions in the amount of \$1,837.50 consisting of 1.5 hours to draft the instant motion, and 3.0 hours to review the opposition and to prepare a reply and appear at the hearing at \$395 per hour, plus a \$60 filing fee. (Declaration of Lindsey M. Espinosa, ¶ 8.) Plaintiff fails to show she acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Accordingly, the Court GRANTS monetary sanctions in the reduced amount of \$850 against Plaintiff and her counsel, Strategic Legal Practices, APC, to be paid within 30 days. Defendant VWGOA to give notice.
8.	30-2026-01566933 In Re: Petition of CBC Settlement Funding, LLC	1. Motion-Other Petitioner, CBC Settlement Funding, LLC, petitions and moves for an order approving the transfer of structured settlement payment rights by and between Matthew Proost, as transferor (“Payee”), and CBC Settlement Funding, LLC, as transferee pursuant to Insurance Code section 10134 et seq. The First Amended Verified Petition (“Petition”) and Amended Motion are GRANTED. Petitioner to submit formal order. The Court has reviewed and approves the Petition to sell to the transferee future payments. The Court approves Payee transferring the Payee’s rights to structured settlement payments totaling \$524,533.53 in exchange for a purchase price of \$260,000. The Court finds the following: (1) The transfer is in the best interest of the payee taking into account the welfare and support of the payee’s dependents. (2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived in writing the opportunity to receive the advice. (3) The transferee has complied with the notification requirements of Insurance Code § 10136 and the transfer agreement complies with Insurance Code §§ 10136 and 10138. (4) The transfer does not contravene any applicable statute or the order of any court or other government authority. (5) The payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code § 10136. (6) The payee understands and does not wish to exercise the payee’s right to cancel the transfer agreement. (Insurance Code § 10139.5(a).) Petitioner to give notice.